

26STLC02453 26STLC02453

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Case Number: 26STLC02453 Hearing Date: August 25, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff BFS Group of California, LLC's Demurrer to Answers Filed by Defendant Cool White Sciences, Inc. and Defendant Rafael Cardenas is sustained as to: the Fourth

Affirmative Defense: Negligence of Third Parties; Eleventh Affirmative Defense:

Comparative Negligence; Eighteenth Affirmative Defense: Contributory Negligence;

Twentieth Affirmative Defense: Assumption of Risk; Twenty-First Affirmative

Defense: Comparative Fault of Third Parties; Twenty-Second Affirmative Defense:

Comparative Fault; Twenty-Seventh and Twenty-Ninth Affirmative Defenses:

Failure to Exercise Reasonable Care; Twenty-Eighth Affirmative Defense: Fair

Responsibility Act, and overruled as to the Twenty-Fifth Affirmative Defense:

No Misrepresentations, Thirtieth Affirmative Defense: Prior Knowledge; and Thirty-Fifth

Affirmative Defense: Causation.

Defendants Cool White Sciences, Inc. and Rafael Cardenas are

to file Amended Answers within ten days of this Order.

Analysis:

On April 10, 2026, Plaintiff BFS Group of

California, LLC ("Plaintiff") filed the Complaint in

this action for (1) Breach of Contract; (2) Quantum Meruit; (3) Account Stated; (4) Open

Book Account; (5) Foreclosure on Mechanic's Lien; (6) Enforcement of Mechanic's

Lien Release Bond; (7) Recovery on Personal Guaranty; and (8) Recovery on

Contractor's License Bond. The Complaint is brought against Defendants Cool

White Sciences, Inc. ("Defendant Cool White Science"), Rafael Cardenas ("Defendant

Cardenas"), MRM Opportunity Zone and Investments LLC ("Defendant MRM"), and The

North River Insurance Company ("Defendant North River").

Defendant Cardenas filed an Answer on July 20, 2026. On July 27, 2026, Plaintiff filed and served the instant Demurrer to Answers Filed by Defendant Cool White Sciences, Inc. and Defendant Rafael Cardenas. Defendant Cool White Science filed its Answer to the Complaint on August 7, 2026. No opposition has been filed to date.

Discussion

The Demurrer is brought to the Answer filed by Defendant Cardenas on July 20, 2026 and to an Answer purportedly filed by Defendant Cool White Science on July 23, 2026. As the Demurrer acknowledges, no Answer had yet been filed by Defendant Cool White Science on July 23, 2026. (Dem., p.3, n.1.) Instead, its Answer was filed on August 7, 2026. The Answer attaches a proof of service showing service on that date. It appears that the same counsel represents both Defendant Cardenas and Defendant Cool White Science. The Demurrer attacks the same affirmative defenses asserted identically in both Answers. (Dem., p. 2:1-16.) In the absence of any objection, the Court will construe the Demurrer filed as to the Answer filed August 7, 2026, as well to Defendant Cardenas' July 20, 2026 Answer.

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41. (Demurrer, Walker Decl., ¶6 and Exhs. A-B.) The Demurrer is brought for failure to state sufficient facts to constitute the affirmative defenses in the Answers. (Citing Code Civ. Proc., § 430.20, subd. (a); § 430.30, subd. (a).) Plaintiff contends that affirmative defenses with "no application to the plaintiff's legal claim" are demurrable, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, and Timberidge Enterprises, Inc. v. City of Santa Rosa (1978) 86 Cal.App.3d 873. In Timberidge, the Court of Appeals explained, "Unlike the usual general demurrer to a complaint the inquiry is not into the statement of a Cause of action. Instead, it is whether the answer raises a Defense to the plaintiff's stated cause of action." (Timberidge Enterprises, Inc., 86 Cal.App.3d at 879-880.) In considering a demurrer to an answer, therefore, the Court must look to the nature of the cause of action and the relevance of the affirmative defense to that cause of action.

Plaintiff demurs to what it characterizes as "the negligence and tort affirmative defenses" in the Answers for being inapplicable to the causes of action stated in the Complaint. The Complaint asserts causes of

action for breach of contract, common counts, enforcement of mechanic's lien bond, and enforcement of contractors license bond. According to Plaintiff, these inapplicable affirmative defenses are the Fourth Affirmative Defense: Negligence of Third Parties; Eleventh Affirmative Defense: Comparative Negligence; Eighteenth Affirmative Defense: Contributory Negligence; Twentieth Affirmative Defense: Assumption of Risk; Twenty-First Affirmative Defense: Comparative Fault of Third Parties; Twenty-Second Affirmative Defense: Comparative Fault; Twenty-Fifth Affirmative Defense: No Misrepresentations; Twenty-Seventh and Twenty-Ninth Affirmative Defenses: Failure to Exercise Reasonable Care; Twenty-Eighth Affirmative Defense: Fair Responsibility Act; Thirtieth Affirmative Defense: Prior Knowledge; and Thirty-Fifth Affirmative Defense: Causation. (Demurrer, p. 4:16-27.)

Other than referring to these affirmative defenses by title and broadly asserting that they are "negligence and tort affirmative defenses," the Demurrer provides no analysis of the aforementioned defenses to explain why they do not raise an answer to any of Plaintiff's causes of action. The Demurrer cites no further part of the language of the defenses, or any authority regarding them. The entire argument consists of about ten lines of text. (See Dem., 5:23-6:05.)

Despite the brevity of the briefing, the Court can see no reason why affirmative defenses that sound in comparative fault, negligence, and tort reform, would apply to the causes of action in the Complaint. The Court will sustain the Demurrer as to the following affirmative defenses: the Fourth Affirmative Defense: Negligence of Third Parties; Eleventh Affirmative Defense: Comparative Negligence; Eighteenth Affirmative Defense: Contributory Negligence; Twentieth Affirmative Defense: Assumption of Risk; Twenty-First Affirmative Defense: Comparative Fault of Third Parties; Twenty-Second Affirmative Defense: Comparative Fault; Twenty-Seventh and Twenty-Ninth Affirmative Defenses: Failure to Exercise Reasonable Care; Twenty-Eighth Affirmative Defense: Fair Responsibility Act.

(See *Fresno Air Serv. v. Wood*(1965) 232 Cal. App. 2d 801, 43 Cal. Rptr. 276 ("Assumption of risk and contributory negligence ... are not applicable as theories of law and defenses to actions for ... breach of contract."); *Stop Loss Ins. Brokers, Inc. v. Brown & Toland Med. Grp.* (2006) 143 Cal. App. 4th 1036, 1041 ("California law does not permit equitable apportionment of damages for breach of contract"); see also *Stanislaus Lumber Co. v. Pike* (1942) 51 Cal. App. 2d 54, 59 ("Mechanic's liens are creatures of statute").) The Fair Responsibility Act, raised in number 28, is a tort reform initiative that does not apply. (See Civ. Code, § 1431.2.) These are in the category of low-hanging fruit. The Court overrules the Demurrer

as to the Twenty-Fifth Affirmative Defense: No Misrepresentations, Thirtieth Affirmative Defense: Prior Knowledge; and Thirty-Fifth Affirmative Defense: Causation, as to which the lack of relevant is less clear, especially in the absence of briefing on point.

Conclusion

Plaintiff BFS Group of California, LLC's Demurrer to Answers Filed by Defendant Cool White Sciences, Inc. and Defendant Rafael Cardenas is sustained as to: the Fourth Affirmative Defense: Negligence of Third Parties; Eleventh Affirmative Defense: Comparative Negligence; Eighteenth Affirmative Defense: Contributory Negligence; Twentieth Affirmative Defense: Assumption of Risk; Twenty-First Affirmative Defense: Comparative Fault of Third Parties; Twenty-Second Affirmative Defense: Comparative Fault; Twenty-Seventh and Twenty-Ninth Affirmative Defenses: Failure to Exercise Reasonable Care; Twenty-Eighth Affirmative Defense: Fair Responsibility Act, and overruled as to the Twenty-Fifth Affirmative Defense: No Misrepresentations, Thirtieth Affirmative Defense: Prior Knowledge; and Thirty-Fifth Affirmative Defense: Causation.

Defendants Cool White Sciences, Inc. and Rafael Cardenas are to file Amended Answers within ten days of this Order.

Moving party to give notice.